IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT-II)
IN
COMPANY APPLICATION NO. – C.A.(CAA)-93/ND/2023

IN THE MATTER OF SCHEME OF AMALGAMATION OF:

ABHIRVEY PROJECTS PRIVATE LIMITED
...Applicant/Transferor Company No. 1
AND
AMB CONSTRUCTIONS PRIVATE LIMITED
...Applicant/Transferor Company No. 2
AND
AMB TRAVEL HOUSE PRIVATE LIMITED
...Applicant/Transferor Company No. 3
AND
KHUSHI VANIJYA PRIVATE LIMITED
...Applicant/Transferor Company No. 4
AND
MEHER BUSINESS VENTURES PRIVATE LIMITED
...Applicant/Transferor Company No. 5
WITH
SOMNIUM HOMES PRIVATE LIMITED
...Applicant/Transferee Company
AND
THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order delivered on 22.03.2024

Under Section: 230 to 232 of the Companies Act, 2013

CORAM:

SH. ASHOK KUMAR BHARDWAJ, HON'BLE MEMBER (J)

SH. SUBRATA KUMAR DASH, HON'BLE MEMBER (T)

PRESENT:

For the Applicant : Adv. Mukesh Sukhija

ORDER

The present petition has been preferred jointly by **Abhirvey Projects Private Limited** (hereinafter referred to as "Applicant Company/Transferor Company No. 1"), **AMB Constructions Private Limited** (hereinafter referred to as "Applicant/Transferor Company No. 2"), **AMB Travel House Private Limited** (hereinafter referred to as "Applicant/ Transferor Company No.3"), **Khushi Vanijya Private Limited** (hereinafter referred to as "Applicant/ Transferor Company No.4"), **Meher Business Ventures Private Limited** (hereinafter referred to as "Applicant/ Transferor Company No.5"), **Somnium Homes Private Limited** (hereinafter referred to as "Applicant/Transferee Company") seeking the following reliefs:-

"1. Dispense with convening the meeting of Shareholders, Secured and Unsecured Creditors of the respective Applicant Transferor Companies.

2. Dispense with convening the meeting of Shareholders, Secured and Unsecured Creditors of the Applicant Transferee Company.

3. Allow the Applicant Companies to make Petition u/s 230, 232 of the Companies Act 2013 for approval of the Scheme of Amalgamation of Abhirvey Projects Private Limited, AMB Constructions Private Limited, AMB Travel House Private Limited, Khushi Vanijya Private Limited, Meher Business Ventures Private Limited, With Somnium Homes Private Limited.

4. Direct service of Notice of this Application on (a) the

*Central Government through the office of the **Regional Director**, Northern Region, Ministry of Corporate Affairs, New Delhi; (b) the **Registrar of Companies**, Delhi and Haryana, New Delhi; (c) The **Official Liquidator**, Ministry of Corporate Affairs, New Delhi; (d) the **Income Tax Department**, New Delhi; To pass such order as this Hon'ble Bench may deem fit."*

2. **ABHIRVEY PROJECTS PRIVATE LIMITED** having CIN U70200DL2013PTC256758, is a private limited company, incorporated on 21.08.2013 under the Companies Act, 1956. The Registered Office of the Applicant/Transferor Company No. 1 is situated at B-76, First Floor, Defence Colony, South Delhi, Delhi, Delhi, India, 110024. The Authorized Share Capital of the Company is Rs. 3,75,00,000/- and its Paid-up Share Capital is Rs. 3,64,02,000/-

3. **AMB CONSTRUCTIONS PRIVATE LIMITED** having CIN U45200DL2007PTC160980 is a private limited company, incorporated on 19.04.2007 under the Companies Act, 1956. The Registered Office of Applicant/Transferor Company No. 2 is situated at B-76, First Floor, Defence Colony, South Delhi, Delhi, Delhi, India, 110024. The Authorized Share Capital of the Company is Rs. 4,25,00,000 /- and its Paid-up Share Capital is Rs. 4,21,00,000/-.

4. **AMB TRAVEL HOUSE PRIVATE LIMITED** having CIN U63000DL2012PTC232918, is a private limited company, incorporated on 15.03.2012 under the Companies Act, 1956.

The Registered office of Applicant/Transferor Company No. 3 is situated at B-76, First Floor, Defence Colony, South Delhi, Delhi, Delhi, India, 110024. The Authorized Share Capital of the Company is Rs.4,00,00,000/- and its Paid-up Share Capital is Rs. 3,94,38,330/-.

5. **KHUSHI VANIJYA PVT LTD** having CIN U51109DL2005PTC245422, is a private limited company, incorporated on 08.12.2005 under the Companies Act, 1956. The Registered office of Applicant/Transferor Company No. 4 is situated at B-76, First Floor, Defence Colony, South Delhi, Delhi, Delhi, India, 110024. The Authorized Share Capital of the Company is Rs. 1,50,00,000/- and its Paid-up Share Capital is Rs. 1,02,55,000/-.

6. **MEHER BUSINESS VENTURES PRIVATE LIMITED** having CIN U24239DL2003PTC121550, is a private limited company, incorporated on 13.07.2003 under the Companies Act, 1956. The Registered office of Applicant/Transferor Company No. 5 is situated at B-76, First Floor, Defence Colony, South Delhi, Delhi, Delhi, India, 110024. The Authorized Share Capital of the Company is Rs. 7,00,00,000/- and its Paid-up Share Capital is Rs. 6,97,50,000/-

7. **SOMNIUM HOMES PRIVATE LIMITED** having CIN U70109DL2022PTC393786, is a public limited company, incorporated on 12.02.2022 under the Companies Act, 2013.

The Registered office of Applicant/Transferee Company is situated at B-76, First Floor Defence Colony, South Delhi, Delhi, Delhi, India, 110024. The Authorized Share Capital of the Company is Rs. 10,00,000/- and its Paid-up Share Capital is Rs. 8,63,200/-.

8. The present Application has been preferred by the 'Transferor Company No. 1-5' and 'Transferee Company' (hereinafter referred to as the **'Applicant Companies')**. The Registered offices of all the Applicants Companies being in Delhi, they are amenable to the territorial jurisdiction of this Bench.

9. As far as the present application is concerned, it is seen from the record that the Board of Directors of all the Applicant Companies vide their meetings held on 20.09.2023 have approved the proposed 'Scheme of Amalgamation. Copies of Resolution of the Board of Directors of Applicant Companies are found on record at Annexure A-1/6, A-2/6, A-3/6, A-4/6, A-5/6, A-6/6.

10. The appointed date of the Scheme is 01.04.2023 as defined in Section – A, Clause 1.2 (b) of the Scheme of Amalgamation.

11. The rationale of the proposed amalgamation Scheme, as espoused by the Applicants read thus:

a) *"The proposed Scheme of Amalgamation would result in business synergy and consolidation of these companies into one large company with a stronger asset base.*

b) *The proposed amalgamation would enable pooling of*

physical, financial and human resource of these Companies for the most beneficial utilization of these factors in the combined entity.

c) *The proposed Scheme of Amalgamation will result in usual economies of a centralized and a large company including elimination of duplicate work, reduction in overheads, better and more productive utilization of human and other resource and enhancement ·of overall business efficiency. It will enable these Companies to combine their managerial and operating strength, to build. a wider capital and financial base and to promote and secure overall growth of their businesses.*

d) *The ·said Scheme of Amalgamation will contribute in fulfilling and furthering the objects of the Transferor and the Transferee Companies. It will strengthen, consolidate and stabilize the business of these Companies arid will facilitate further expansion and growth of their business. The resulting amalgamated company will be able to participate more vigorously and profitably in the competitive market scenario.*

e) *The proposed amalgamation would enhance the shareholders' value of the Transferor and the Transferee Companies.*

f) *The said Scheme of Amalgamation will have beneficial impact on all the Transferor and the Transferee Companies, their shareholders, employees and other stake holders and all concerned."*

12. The applicant companies have furnished the following documents: -Proposed Scheme of Amalgamation (Annexure A-8 of

the application).

i. Master Data along with Memorandum and Articles of Association of Transferor Company No. 1, Transferor Company No. 2, Transferor Company No. 3, Transferor Company No. 4, Transferor Company No. 5, Transferee Company (Annexures A-1/1, A-1/2, A-2/1, A-2/2, A-3/1, A-3/2, A-4/1, A-4/2, A-5/1, A-5/2, A-6/1, A-6/2 respectively of the application).

ii. List of Shareholders of Transferor Company No. 1 as on 20.09.2023, along with Consent Affidavits (Annexure A-1/7, A-1/8 of the application).

iii. List of Shareholders of Transferor Company No. 2 as on 20.09.2023, along with Consent Affidavits (Annexure A-2/7, A-2/8 of the application).

iv. List of Shareholders of Transferor Company No. 3 as on 20.09.2023, along with Consent Affidavits (Annexure A-3/7, A-3/8 of the application).

v. List of Shareholders of Transferor Company No. 4 as on 20.09.2023, along with Consent Affidavits (Annexure A-4/7, A-4/8 of the application).

vi. List of Shareholders of Transferor Company No. 5 as on 20.09.2023, along with Consent Affidavits (Annexure A-5/7, A-5/8 of the application).

vii. List of Shareholders of Transferee Company as on 20.09.2023, along with Consent Affidavits (Annexure A-6/7, A-6/8 of the application).

viii. List of 'NIL' Secured Creditors for the Transferor Company No. 1, Transferor Company No. 2, Transferor Company No. 3, Transferor Company No. 4, Transferor Company No. 5,

Transferee Company (Annexures A- 1/9, A-2/9, A-3/9, A-4/9, A-5/9, A-6/9 of the application)

ix. List of Unsecured Creditors for the Transferor Company No. 1, Transferor Company No. 2, Transferor Company No. 3, Transferor Company No. 4, Transferor Company No. 5, Transferee Company duly certified by the Statutory Auditors along with their Written Consents/NOC by way of Affidavits (Annexure A-1/10, A-1/11, A-2/10, A-2/11, A-3/10, A-3/11, A-4/10, A-4/11, A-5/10, A-5/11, A-6/10, A-6/11)

x. Certificates of Statutory Auditors to the effect that Accounting treatment proposed in the Scheme conforms with Section 133 of the Companies Act, 2013 are attached as Annexure A-9/1 to A-9/6 of the application.

xi. Proposed Share Entitlement Ratio, provided under the Report on Valuation of Shares & Share Exchange Ratio of Mr. Manish Manwani, Registered Valuer, attached as Annexure A-7 of the application.

xii. Audited financial statements as of 31.03.2023, of the Transferor Company No. 1, Transferor Company No. 2, Transferor Company No. 3, Transferor Company No. 4, Transferor Company No. 5, Transferee Company have been annexed and marked as Annexure A-1/3, A-2/3, A-3/3, A-4/3, A-5/3, A-6/3 respectively.

13. It is further submitted by the counsel for applicant companies that as per the Valuation Report dated 09.09.2023 submitted by Mr. Manish Manwani (SFA) Registered Valuer, IBBI Registration No. IBBI/RV/03/2021/14113 attached as Annexure A-7 of the Application, that the Share Exchange and Entitlement Ratio is as

given below:-

For the proposed amalgamation of APPL, ACPL, ATHPL, KVPL and MBVPL with SHPL:

- **1 (One) equity shares of Somnium Homes Pvt. Ltd. of Rs. 10.00/- each, fully paid-up for every 401 (Four Hundred One) equity shares of Abhiray Projects Pvt. Ltd. of Rs. 10.00/- each, fully paid-up.**
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- **4 (Four) equity shares of Somnium Homes Pvt. Ltd. of Rs. 10.00/- each, fully paid-up for every 7,000 (Seven Thousand) equity shares of AMB Construction Pvt. Ltd. of Rs. 10.00/- each, fully paid-up.**
- **1 (One) equity shares of Somnium Homes Pvt. Ltd. of Rs. 10.00/- each, fully paid-up for every 863 (Eight Hundred Sixty-Three) equity shares of AMB Travel House Pvt. Ltd. of Rs. 10.00/- each, fully paid-up.**
- **2 (Two) equity shares of Somnium Homes Pvt. Ltd. of Rs. 10.00/- each, fully paid-up for every 507 (Five Hundred Seven) equity shares of Khushi Vanijya Pvt. Ltd. of Rs. 10.00/- each, fully paid-up.**

Note: As the Fair value of Mehar Business Ventures Pvt. Ltd. is NIL. Therefore, 1 (One) equity shares of Somnium Homes Pvt. Ltd. of Rs. 10.00/- each, fully paid-up to every shareholder of Mehar Ventures Pvt. Ltd. of holding equity shares of Rs. 10.00/- each, fully paid-up.

14. It is contended by the learned counsel that the Scheme (Annexure A 8) also takes care of the interests of the staff/workers and employees of the Transferor Companies. By Clause 8 of the Scheme, it is stated that upon the Scheme coming into effect, all staff and employees of the Transferor Company, on such date shall be deemed to have become staff and employees of the Transferee Company based on continuity of service without any break or interruption in service and terms and conditions of their employment with the Transferee Company shall not be less favourable than those applicable to them with reference to the Transferor Company.

15. The Applicants have made a categorical averment in Application that as on the date of this Application, no proceeding

for inspection, inquiry or investigation under the provisions of the Companies Act, 2013, or under the provisions of the Companies Act, 1956, is pending against the Applicant Companies

16. The status of Equity Shareholders, Secured and Unsecured Creditors as also their Consent through Affidavits qua all the Companies as espoused in the Application filed by the Applicants can be summarised as below:

Company	No. of Share Holders	Consent Given	No. of Secured Creditors	Consent Given	No. of Un-secured Creditors	Consent Given
Transferor Company No.1	5	*All*	Nil	*N.A.*	6	*All*
Transferor Company No.2	5	*All*	Nil	*N.A.*	1	*All*
Transferor Company No.3	8	*All*	Nil	*N.A.*	4	*All*
Transferor Company No.4	9	*All*	Nil	*N.A.*	2	*All*
Transferor Company No.5	3	*All*	Nil	*N.A.*	10	*All*
Transferee Company	2	*All*	Nil	*N.A.*	2	*All*

17. All the shareholders of the Applicant Companies have given 'No Objection' to the Scheme on their respective affidavit. Therefore, the requirement of convening the Meetings of Shareholders in

respect of the Applicant Companies is dispensed with.

18. Since more than 90% in value of the Unsecured Creditors of the Applicant Companies have given 'No Objection' to the Scheme therefore, their meeting is dispensed with.

19. There are no secured creditors in any of the Applicant Companies, therefore, the need to convene their meeting does not arise.

20. So far as the prayer for serving a notice to the various authorities as espoused in Prayer (4), Section – 230(5) read with Section – 230(3) of Companies Act, 2013 provides for issuance of notice in case a meeting is convened. However, all the meetings are dispensed in terms of Section – 230(9) of Companies Act, 2013. Hence, there is no requirement of issuing notice to the sectoral regulators at this stage.

21. The Application is allowed in the aforesaid terms.

Sd/-	Sd/-
(SUBRATA KUMAR DASH)	**(ASHOK KUMAR BHARDWAJ)**
MEMBER (T)	**MEMBER (J)**